

GZ: 2025-0.050.186 dated September 21, 2022 (Case number: DSB-D124.5082)

[Note from the editor: Names and companies, legal forms and product designations, addresses (including URLs, IP and email addresses), file numbers (and the like), statistical data, etc., as well as their initials and abbreviations may have been abbreviated and/or altered for pseudonymization reasons. Obvious spelling, grammar, and punctuation errors have been corrected.]

DECISION

RULING

The Data Protection Authority decides on the data protection complaint of Dr. Carlotta B*** A*** and Dr. René A*** (complainants) dated October 2, 2021, improved by submission dated October 25, 2021, against Herta N*** (respondent) for violation of the right to confidentiality as follows:

1. The complaint is upheld, and it is determined that the respondent has violated the complainants' right to confidentiality by capturing the entrance area of the complainants' apartment at P***straße *46/9 in 1*** Vienna in image and sound with the camera operated by her at the address P***straße *46/10 in 1*** Vienna.

2. The respondent is ordered to restrict the image and sound recording area of the camera operated by her within a period of three (3) weeks, failing which enforcement will be carried out, so that neither the entrance area of the complainants' apartment at P***straße *46/9 in 1*** Vienna nor any other areas of the residential complex at P***straße *46 in 1*** Vienna beyond the immediate entrance area of the respondent's apartment are captured.

Legal bases: Art. 4 No. 1, 2 and No. 7, Art. 5 para. 1 lit. c, Art. 6 para. 1 lit. a and lit. f, Art. 51 para. 1, Art. 57 para. 1 lit. f, Art. 58 para. 2 lit. d, and Art. 77 para. 1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter: GDPR), OJ No. L 119 of May 4, 2016, p. 1; §§ 1 para. 1 and para. 2, 18 para. 1, and 24 para. 1 and para. 5 of the Data Protection Act (DSG), Federal Law Gazette I No. 165/1999 as amended; §§ 45 and 46 of the General Administrative Procedure Act 1991 (AVG), Federal Law Gazette No. 51/1991 as amended.

REASONING

A. Submissions of the Parties and Procedural History

1. The complainants alleged in their initial submission dated October 2, 2021, improved by submission dated October 25, 2021, a violation of the right to confidentiality and summarized that the respondent operates an unlawful video and audio surveillance of the complainants' apartment door as well as the stairwell and elevator area used by the complainants at the address P***straße *46/10 in 1*** Vienna. The camera recordings could be viewed by the respondent at any time on her mobile phone. The complainants informed the respondent that they find it extremely uncomfortable to be filmed without their consent and therefore requested the respondent to cease further surveillance. The respondent did not respond to this request, and the video camera remains in operation unchanged.

2. By decision dated November 30, 2021, GZ: D124.5082 (2021-0.757.000), and further urgency dated December 30, 2021, GZ: D124.5082 (2021-0.916.033), the Data Protection Authority requested the respondent to provide a statement. The respondent did not respond to the request letters.

3. The Data Protection Authority informed the complainants by letter dated February 9, 2022, GZ: D124.5082 (2022-0.082.245), that the respondent had not provided a statement despite the demonstrably delivered request letters and that the initiation of an administrative penalty procedure for violation of the duty to cooperate is being considered. The respondent has not provided any statement regarding the complaint despite all measures taken.

B. Subject of the Complaint

The subject of the complaint is the question of whether the respondent has violated the complainants' right to confidentiality by operating a camera at the address P***straße *46/10 in 1*** Vienna, which captures the entrance area of the complainants' apartment in image and sound.

C. Findings of Fact

1. The complainants and the respondent reside in a multi-family residential building at P***straße *46 in 1*** Vienna and are immediate neighbors, with the complainants using the residential unit at P***straße *46/9 and the respondent using the opposite residential unit at P***straße *46/10.

Assessment of Evidence: The finding is based on the submissions of the complainants and the

documented image and video recordings submitted in the file.

2. The respondent has installed the following camera device and signage at her apartment door (formatting not reproduced 1:1):

[Note from the editor: The three images originally presented here as graphic files have been removed.]

The camera device records audio and video, with the recording area designed as follows (formatting not reproduced 1:1, markings added later by the data protection authority):

[Note by the editor: The photographic image originally presented here as a graphic file has been removed.]

The audio recording area of the camera device extends at least to the entrance door of the complainants.

Assessment of evidence: The findings regarding the camera device and the signage are based on the images submitted by the complainants, which clearly show the video camera attached to the entrance door of the respondent along with the signage. The determination of the audio and video recording area is derived from the video recording provided by the respondents [Note by the editor: presumably meant: complainants], which clearly shows the recording area and also audibly indicates that the audio recording area extends at least to the entrance door of the complainants, as, for example, footsteps in this area can be clearly heard.

3. The camera is a device from the "Camera-***bell" series of the manufacturer "K***", which allows recordings to be accessed remotely on a mobile device.

Assessment of evidence: In this finding, the data protection authority follows the credible assertions of the complainants, who state that they have repeatedly learned that the respondent knew exactly how long the complainants were absent or when they returned home. This assertion is also supported by the technical specifications and device characteristics on the manufacturer's website

https://de.k***.com/ as well as https://de.k***.com/****/****bells, last queried ex officio on September 21, 2022. The statements of the complainants were not disputed by the respondent, despite having been given multiple opportunities to do so.

4. The recording function of the camera is not dependent on the pressing of the doorbell or on entering the immediate entrance area of the respondent's apartment, but occurs independently of that.

Assessment of evidence: In this finding, the data protection authority follows the credible assertions of the complainants, who state that the recording is triggered by motion. This assertion is supported by the video recording provided, which shows that recording begins as soon as someone enters the stairwell, and not only after pressing the respondent's doorbell or while in their immediate entrance area.

5. There was never any consent from the complainants for the audio and video recording in question.

Assessment of evidence: This finding arises from the assertions of the complainants, who state that they did not consent to the audio and video recording. The respondent has not presented anything to the contrary, despite having been given multiple opportunities to do so.

6. The respondent was requested to provide a statement by letter from the data protection authority dated November 30, 2021, GZ: D124.5082 (2021-0.757.000). The request letter sent via registered mail was demonstrably received on December 7, 2021. With a reminder dated December 30, 2021, GZ: D124.5082 (2021-0.916.033), the respondent was again requested to submit the statement. This reminder letter, also sent via registered mail, was demonstrably received on January 7, 2022. Due to a violation of the duty to cooperate, an administrative fine procedure was initiated against the respondent ex officio, and a fine was imposed by penalty order dated July 15, 2022. The respondent has not submitted any statement regarding the complaint until the time of decision, nor has it responded in any other way to the requests of the data protection authority.

Assessment of evidence: The findings arise from the present case file for GZ: D124.5082 and the documented return receipts therein, as well as from the administratively initiated administrative fine procedure for GZ: D550.661.

D. Legally, this leads to the following:

D.1. Regarding the factual findings and the assessment of evidence

It should be noted that the parties are generally obliged to contribute to the determination of the facts through a substantial presentation (cf. VwGH 24.01.2013, 2010/07/0218). Ultimately, it is in the hands

of the parties themselves to effectively participate in the proceedings and to present their submissions as comprehensively and promptly as possible to avoid any potential legal disadvantages. As can be seen from the findings, the respondent was repeatedly asked, unsuccessfully, to provide the necessary statements for the present proceedings. Even the initiation of an administrative fine procedure and the imposition of a fine for violation of the duty to cooperate in accordance with Art. 31 GDPR did not elicit any response from the respondent. Here is the translation of the provided legal document text into English:

Where the authority cannot investigate facts (including the collection of evidence) without the participation of the party, because they are only known to that party (here: to the respondent), it is up to the party to contribute their knowledge (cf. Hengstschläger/Leeb, Administrative Procedure Law6, para. 302 referring to VwGH 19.12.2001, 2000/20/0318; 26.4.2016, Ra 2016/03/0038; 27.2.2018, Ro 2016/05/0009). The improper participation of a party in the evidentiary procedure is subject to free evaluation of evidence according to § 45 para. 2 and § 46 AVG (cf. the case law reproduced in Walter/Thienel, Administrative Procedure Laws I2, p. 678, E 218 f. to § 45 AVG; see also VwGH 04.09.2013, 2011/08/0201). According to the consistent case law of the Administrative Court, it is at the discretion of an authority, within the framework of free evaluation of evidence, to possibly draw negative conclusions for the respondent from the lack of participation of the respondent in the investigative procedure (cf. for example VwGH 15.05.1986, ZI. 86/03/0044, or VwGH 11.06.1991, ZI. 90/07/0166). Due to the complete lack of participation of the respondent, the (conclusive) submissions of the complainants must therefore be regarded as true and used as the basis for the findings with the submitted evidence.

D.2. On the Fundamental Right to Confidentiality (Decision Point 1)

The fundamental right to confidentiality enshrined in § 1 para. 1 DSG states that everyone, particularly with regard to the respect for their private and family life, has a right to the confidentiality of their personal data, as long as there is a legitimate interest in doing so. This includes the protection of the affected person from the investigation of their data and the transfer of data collected about them. However, the fundamental right to confidentiality is not absolute and may be restricted by certain permissible interventions. According to § 1 para. 2 DSG, restrictions on the right to confidentiality, insofar as the use of personal data does not occur in the vital interest of the affected person or with their consent, are only permissible to protect overriding legitimate interests of another party, whereby interventions by a state authority may only occur based on laws that are necessary for the reasons stated in Art. 8 para. 2 ECHR. Restrictions of § 1 para. 1 DSG arise from para. 2 leg. cit., but not from Art. 6 para. 1 GDPR. However, the GDPR and, in particular, the principles enshrined therein must be used for the interpretation of the right to confidentiality (cf. the decision of the Data Protection Authority of July 4, 2019, GZ DSB-D123.652/0001-DSB/2019 with references). According to Art. 4 no. 1 GDPR, "personal data" means any information relating to an identified or identifiable natural person. In the case of image recordings, the depicted persons must at least be recognizable or determinable (cf. Hödl in Knyrim [ed.], DatKomm Art. 4 GDPR para. 16). The same applies to audio recordings regarding the recorded individuals.

Please let me know if you need any further assistance!

****Persons**** (cf. already the decision of the former Data Protection Commission dated June 21, 2005, GZ: K503.425-090/0003-DVR/2005, according to which audio recordings can be considered "data" within the meaning of Directive 95/46/EC; these considerations can also be transferred to the new legal situation). In the present case, there is no doubt that personal data of the complainants is present, as the camera in question sufficiently records the entrance area of the complainants' apartment as well as other (communal) areas of the residential complex used by them in both image and sound, and the complainants have convincingly demonstrated that they can be identified by the respondent (their neighbor).

According to Art. 4 No. 2 GDPR, "processing" refers to any operation or set of operations performed on personal data, whether or not by automated means. Due to the lack of cooperation from the respondent, it could not be determined whether the camera in question records only in real-time or also stores the recordings. However, this is irrelevant for the definition of processing, as even a mere real-time recording within the framework of video or audio surveillance falls under the definition of processing according to Art. 4 No. 2 GDPR, since data is processed in this case as well (cf. for example, the decision of the BVwG dated December 18, 2019, GZ: W211 2209492-1).

According to Art. 4 No. 7 GDPR, the "controller" is the natural or legal person, authority, agency, or other body that alone or jointly with others determines the purposes and means of the processing of personal data. In this case, based on the statements of the complainants – and in the absence of any contrary submissions – the respondent can be qualified as the data protection responsible party for the camera in question, especially since her use of the residential unit at the address P***straße 46/9 [Note: likely referring to apartment/door number 10] indicates a certain degree of data protection responsibility for the camera installed at the entrance door.

According to Art. 6 para. 1 GDPR, processing is only lawful if at least one of the conditions set out in lit. a to f is fulfilled. The respondent has not provided any submissions regarding which legal bases under Art. 6 para. 1 GDPR she relies on for the image and sound processing she conducts, due to her lack of cooperation.

According to the findings, there is no consent from the complainants within the meaning of Art. 6 para. 1 lit. a GDPR, so it must be examined whether other legal bases for lawfulness can be invoked.

Regarding the processing of personal data through image processing systems (video surveillance) by private individuals, the CJEU has stated that such processing can generally be based on the provision of Art. 6 para. 1 lit. f GDPR, provided that the processing is necessary for the purposes of the legitimate interests pursued by the controller or a third party.

necessary consideration bei der Abwägung der Interessen stattfinden muss (vgl. das Urteil des Obersten Gerichtshofs vom 24. September 2019, 4 Ob 113/19h).

Zusammenfassend lässt sich sagen, dass die Verarbeitung personenbezogener Daten im Rahmen berechtigter Interessen nur dann zulässig ist, wenn alle genannten Voraussetzungen erfüllt sind. Insbesondere muss die Verarbeitung auf das notwendige Maß beschränkt sein und die Interessen der betroffenen Person dürfen nicht überwiegen.

1. ****Erforderlichkeit der Datenverarbeitung****

- Die Verarbeitung personenbezogener Daten ist nur zulässig, wenn sie für die Verwirklichung eines berechtigten Interesses erforderlich ist.
- Die Interessen oder Grundrechte der betroffenen Person dürfen nicht überwiegen.

2. ****Berechtigtes Interesse****

- Ein berechtigtes Interesse kann z.B. der Schutz von Eigentum oder Gesundheit sein.
- Die Installation von Überwachungskameras kann ein geeignetes Mittel zur Gefahrenabwehr darstellen.

3. ****Einschränkungen der Datenverarbeitung****

- Die Ausnahmen und Einschränkungen müssen auf das absolut Notwendige beschränkt sein.
- Der Verantwortliche muss prüfen, ob die Aufzeichnung in bestimmten Bereichen erforderlich ist.

4. ****Schutz der Privatsphäre****

- Der Schutz der Privatsphäre endet nicht an der inneren Wohnungstür.
- Eine Abwägung der Interessen ist notwendig.

Die genannten Punkte sind entscheidend für die rechtliche Bewertung der Datenverarbeitung im Rahmen von Videoüberwachung und müssen bei der Umsetzung entsprechender Maßnahmen berücksichtigt werden.

****D.4. Official Performance Order Regarding the Restriction of the Image and Sound Recording Area**

of the Camera (Decision Point 2)**

This decision point concerns an official action by the Data Protection Authority in accordance with Article 58(2)(d) of the GDPR, which grants the Data Protection Authority remedial powers allowing it to instruct a controller to modify or conduct processing operations in a specific manner.

Since the image and sound recording area of the camera operated by the respondent captures areas that extend beyond the immediate entrance area of their own apartment, the respondent was instructed to restrict the image and sound recording area accordingly, so that neither the entrance area of the complainants' apartment nor any other areas extending beyond the immediate entrance area of the respondent's apartment (e.g., lift area, entire stairwell) are recorded.

For the interpretation of the "immediate entrance area of the respondent's apartment," reference should be made to the case law of the Data Protection Authority, which states that the permissible limit for capturing areas outside one's own property boundary is a maximum of 50 cm (see the decision of the Data Protection Authority dated December 5, 2017, GZ: DSB-D216.405/0006-DSB/2017) [Note by the editor: This is strictly speaking a recommendation according to the former § 30(6) of the Data Protection Act 2000, which would now be issued in decision form.].

The manner in which the second respondent implements the performance order is left to their discretion. Options may include, for example, a "physical relocation" of the camera or the system-side establishment of so-called "private zones."

The set deadline of three weeks appears to be reasonable to comply with the performance order.

****D.5. Conclusion****

Based on the considerations outlined above, a decision was made accordingly.